

25VECV04899 25VECV04899

County: los-angeles

Division: Civil Law and Motion

Department: 107

Hearing date: 2026-07-28

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Case Number: 25VECV04899 Hearing Date: July 28, 2026 Dept: 107

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

COUNTY OF LOS ANGELES

NORTHWEST DISTRICT

Elevated

Health, Inc.,

Plaintiff,

v.

Anthem

Blue Cross Life and Health Insurance Company,

Defendant.

Case Number Department

25VECV04899 107

COURT'S [TENTATIVE]

ORDER RE:

Demurrer

without Motion to Strike;

[THE

FOLLOWING IS A TENTATIVE RULING IN THE ABOVE CASE]: Continue Hearing

I.

BACKGROUND

Starting

January 1, 2021, Plaintiff Elevated Health, Inc. ("Plaintiff") "provided vital COVID-19 diagnostic testing and screening services to individuals insured or covered by healthcare plans administered or underwritten by Defendants." (Third Amended Complaint ["TAC"] ¶ 12.) Plaintiff provided these services "as an independent, out-of-network, non-participating provider." (TAC ¶ 13.) Defendants are financially responsible for paying healthcare providers and suppliers for COVID-19 testing and diagnostic services performed for their insureds and members. (TAC ¶ 13.) "Plaintiff maintained and published a uniform baseline cash price of \$125.00 for its COVID-19 diagnostic testing and screening services on its publicly accessible website." (TAC ¶ 14.) Plaintiff submitted claims to Defendants for the services rendered. (TAC ¶ 15.) Defendants did not instruct Plaintiff to cease providing services or issue notices claims would be rejected. (TAC ¶ 16.)

Between

January 1, 2021, and February 6, 2024, Plaintiff provided over 100,000 COVID-19 diagnostic and testing services to Defendants' insureds. (TAC ¶ 17.) Defendants failed to pay Plaintiff for these services. (TAC ¶ 17.) Between January 8, 2021, and August 22, 2023, Plaintiff provided another 14,856 COVID-10 diagnostic and testing services to Defendants' insureds. (TAC ¶ 18.) Defendants made partial, nominal, and incomplete payments for these services. (TAC ¶ 18.) Between January 9, 2021, and November 23, 2021, Plaintiff provided an additional 7,706 COVID-19 diagnostic screening services to Defendants' insureds. (TAC ¶ 19.) Defendants refused to pay Plaintiff for these services, bypassed the out-of-network provider, and "claims to have reimbursed their own insureds an approximate aggregate sum of \$575,000.00 . . ." (TAC ¶ 19.)

On

August 28, 2025, Plaintiff filed a complaint against Defendants Anthem Blue Cross Life and Health Insurance Company ("Defendant") and Does 1 through 25, alleging causes of action for: (1) breach of implied contract; and (2) goods and services rendered.

On

December 2, 2025, Plaintiff filed a first amended complaint against Defendant and Does 1 through 25, alleging causes of action for: (1) breach of implied contract; (2) goods and services rendered; and (3) statutory liability for violation of Senate Bill 510 and the CARES Act.

On

February 19, 2026, Plaintiff filed a second amended complaint against Defendant and Does 1 through 25, alleging causes of action for: (1) breach of implied contract; (2) goods and services rendered; (3) statutory liability for violation of Senate Bill 510, the CARES Act, and Insurance Code section 10110.7; (4) violation of California Business and Professions Code section 17200, et seq.; (5) open book account; (6) account stated; (7) unjust enrichment; and (8) declaratory relief.

On

March 24, 2026, Defendant filed a demurrer without motion to strike. On April 27, 2026, the court sustained the demurrer as to the first, third, fifth, sixth, and seventh causes of action and overruled it as to the second, fourth, and eighth causes of action. (04/27/26 Minute Order p. 14.) The court granted Plaintiff leave to amend. (04/27/26 Minute Order p. 14.)

On

May 27, 2026, Plaintiff filed a third amended complaint against Defendant and Does 1 through 25, alleging causes of action for: (1) breach of implied contract; (2) good and services rendered; (3) violation of California Business and Professions Code section 17200, et seq.; (4) open book account; (5) account stated; and (6) declaratory relief.

On

June 30, 2026, Defendant filed a demurrer without motion to strike. On July 15, 2026, Plaintiff filed an opposition. On July 21, 2026, Defendant filed a reply.

II.

MEET

AND CONFER

¿

California Code of Civil Procedure

section 430.41, subdivision (a) requires parties to “meet and confer in person, by telephone, or by video conference” before the filing of a demurrer to attempt to resolve the objections raised in the demurrer. The demurring party is required to file and serve with the demurrer a declaration either confirming that parties were unable to resolve the issues raised by the demurrer despite having met and conferred or that the opposing party failed to meet and confer with the demurring party in good faith. (Code Civ. Proc., § 430.41, subd. (a)(3).)

Defendant’s counsel submits a declaration stating they sent Plaintiff’s counsel a meet and confer email. (Ellis Declaration ¶¶ 2-4.) Defendant’s counsel states Plaintiff’s counsel did not respond to the email or agree to dismiss the complaint. (Ellis Declaration ¶ 5.) Defendant’s counsel further states “[t]he parties did not reach an agreement to resolve the pleadings dispute” so Defendant filed the demurrer. (Ellis Declaration ¶ 5.)

Code

of Civil Procedure section 430.41, subdivision (a) requires meeting and conferring in person, by telephone, or by video conference. As the court already informed Defendant’s counsel in its April 27, 2026, Minute Order, that a meet and confer email is insufficient. (04/27/26 Minute Order pp. 3-4.) Further, in the April 27, 2026, Minute Order, the court stated it would consider the merits, but “[i]n the future, counsels must satisfy their meet and confer obligations, or the court will consider continuing the hearing until the parties have an opportunity to properly meet and confer.” (04/27/26 Minute Order p. 4.)

“A

determination by the court that the meet and confer process was insufficient shall not be grounds to overrule or sustain a demurrer.” (Code Civ. Proc., § 430.41, subd. (a)(4).) However, “trial courts are not required to ignore defects in the meet and confer process. If, upon review of a declaration under section 430.41, subdivision (a)(3), a court learns no meet and confer has taken place, or concludes further conferences between counsel would likely be productive, it retains discretion to order counsel to meaningfully discuss the pleadings with an eye toward reducing the number of issues or eliminating the need for a demurrer, and to continue the hearing date to facilitate that effort.” (Dumas v. Los Angeles County Bd. of Supervisors (2020) 45 Cal.App.5th 348, 355, fn. 3.)

Defendant's counsel

failed to sufficiently meet and confer in-person, by telephone, or by video conference. As such, the court will continue the hearing to permit counsels to properly meet and confer.

III.

CONCLUSION

For

the foregoing reasons, the court continues the hearing on the demurrer to Friday, August 28, 2026. Defendant's counsel is ordered to file a supplemental declaration discussing meet and confer efforts that comply with Code of Civil Procedure section 430.41, subdivision (a) by August 21, 2026.

Dated: July 28,

2026 _____ Hon.

Eric Harmon

Judge of the Superior Court